

## 25STCV37524 25STCV37524

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No.

11 - Salvatore Di Costanzo v. California Hills Tennis Condo Homeowner Association, Inc., et al.

Defendants' Demurrer and Motion to  
Strike Portions of Plaintiff's First Amended Complaint

Demurrer

Defendants Cahuenga Hills Tennis  
Condominium Association, Inc. ("Cahuenga Hills"), First Service Residential  
California LLC ("First Service"), and Comuneo Services Inc. ("Comuneo") demur  
to Plaintiff's first amended complaint ("FAC"). Plaintiff alleges causes of  
action for (1) negligence; (2) premises liability; (3) breach of CC&Rs; (4)  
breach of statutory duty; (5) breach of fiduciary duty; (6) negligent misrepresentation;  
(7) negligence per se;<sup>[1]</sup>  
and (8) declaratory relief.

A. Uncertainty

Defendants

contend the FAC is uncertain because it lumps all Defendants together. "A  
demurrer for uncertainty is strictly construed, even where a complaint is in  
some respects uncertain, because ambiguities can be clarified under modern  
discovery procedures." (Khoury v. Maly's of Cal., Inc. (1993) 14  
Cal.App.4th 612, 616.) " ' "Demurrers  
for uncertainty are disfavored, and are granted only if the pleading is so  
incomprehensible that a defendant cannot reasonably respond." ' ' " (A.J.

Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, alterations omitted.) The complaint must sufficiently apprise defendants of the claims against them. (Ibid.) Here, this reference to “Defendants” committing violations and breaching certain duties does not prevent them from answering the claims alleged.

#### B. Sufficiency of Allegations

##### Defendants

generally argue that each claim asserted by Plaintiff fails because the FAC consists only of legal conclusions. For example, under the cause of action for negligence, Plaintiff lists three bare allegations: “Defendants owed Plaintiff a duty of care. Defendants breached that duty. Plaintiff suffered damages as a direct result.” (FAC, ¶¶ 34-36.) Each cause of action repeats a similar pattern of alleging only legal elements. In opposition, Plaintiff argues that the FAC must be read as a whole, and the Court should consider the facts that precede causes of action in the “general allegations” section. (See FAC, ¶¶ 6-33.)

It is true that the Court must read the complaint “as a whole and all its parts in their context” (Moore v. Regents of University of California (1990) 51 Cal.3d 120, 125) and liberally construe it in favor of the plaintiff (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238). However, even when reading the FAC as a whole, it only provides sufficient facts to support Plaintiff’s first two causes of action: negligence and premises liability.

##### For

negligence, Plaintiff alleges that Defendant Cahuenga Hills “owned, managed, and controlled the common-area landscaping” and “had a non-delegable duty to inspect, maintain, repair, and replace common-area components, including trees.” (FAC, ¶¶ 6-7.) Plaintiff also alleges that all Defendants had the “obligation to implement reasonable inspection and maintenance programs.” (Id., ¶ 8.) Liberally construing the allegations in Plaintiff’s favor, he alleges breach when Defendants “failed to conduct adequate inspection, maintenance, or remediation” of the tree that collapsed on his vehicle. (Id., ¶ 14.) As a result, Plaintiff alleges he suffered damages. (Id., ¶ 23.) This is sufficient at the pleading stage to allege negligence.

##### The

same allegations support a claim for premises liability. “The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.” (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

However, these general allegations do not support Plaintiff’s claims for breach of fiduciary duty, breach of CC&Rs, breach of statutory duty, negligent misrepresentation, and declaratory relief. In addition, it is unclear to the Court how Plaintiff can allege a viable cause of action for breach of statutory duty under Civil Code section 4775—there is no private right of action under the statute. However, it is also not clear that there is no reasonable possibility of amendment. Given the liberal policy allowing amendment, the Court will grant Plaintiff leave to amend these claims.

#### Motion to Strike

Defendants Cahuenga Hills Tennis Condominium Association, Inc., First Service Residential California LLC, and Comuneo Services Inc. move to strike portions of Plaintiff Salvatore Di Costanzo’s FAC. Specifically, Defendants move to strike Plaintiff’s entire seventh cause of action for negligence per se and references to punitive damages.

#### A. Request for Judicial Notice

Defendants request the Court take judicial notice of this Court’s March 30, 2026 ruling. This document is a court record subject to judicial notice under Evidence Code section 452(d).

Defendants’ request for judicial notice is granted.

#### B. Striking Allegations

##### Courts

may strike allegations that are “not essential to the statement of a claim or defense,” “neither pertinent to nor supported by an otherwise sufficient claim or defense,” or “[a] demand for judgment requesting relief not supported by the allegations.” (Code Civ. Proc., § 431.10(b).) A party may move to strike portions of pleadings that are “irrelevant, false, or improper matter.” (Code

Civ. Proc., § 436(a).)

First,

the Court will strike Plaintiff's seventh cause of action. This claim is beyond the scope of the Court's March 30, 2026 ruling granting Defendants' motion to strike in part with leave to amend. Plaintiff neither sought nor received permission to add a new cause of action to the FAC.

Second,

Defendants move to strike four allegations referring to punitive damages. Courts may strike allegations related to punitive damages where the facts alleged "do not rise to the level of malice, oppression or fraud necessary" to recover punitive damages under Civil Code section 3294. (Turman v. Turning Point of Central California, Inc. (2010) 191 Cal.App.4th 53, 64.)

Plaintiff's

FAC does not support a request for punitive damage against corporate entities. However, the Court sustained Defendants' demurrer to five of Plaintiff's claims, including his claim for breach of fiduciary duty, with leave to amend. Therefore, it is possible that forthcoming amendments will support a request for punitive damages. The motion as to striking punitive damages is thus moot, but could be renewed following the filing of a second amended complaint.

Disposition

Defendants Cahuenga Hills Tennis

Condominium Association, Inc., First Service Residential California LLC, and Comuneo Services Inc.'s demurrer to Plaintiff's first amended complaint is overruled as to the first and second causes of action. It is sustained with 21 days' leave to amend as to the third, fourth, fifth, sixth, and eighth causes of action. The demurrer as to the seventh cause of action is moot.

Defendants Cahuenga Hills Tennis

Condominium Association, Inc., First Service Residential California LLC, and Comuneo Services Inc.'s motion to strike portions of Plaintiff's first amended complaint is granted in part with leave to amend.

The

Court hereby strikes Plaintiff's seventh cause of action for negligence per se.

Plaintiff shall file any second  
amended complaint within 21 days.

[1] Plaintiff's cause

of action for negligence per se was added without leave of Court. Defendants  
request that the Court strike this cause of action in their concurrently filed  
motion to strike. Because the Court will grant this request for relief in its  
ruling on the motion to strike, it will not address the claim's merits on  
demurrer.